

26SMCV01266 26SMCV01266

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Case Number: 26SMCV01266 Hearing Date: July 28, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles – West District

Beverly Hills Courthouse / Department 205

HELEN MIRSHOKRI, et al.,

Plaintiffs,

v.

HERSEL

AHDOUT, et al.,

Defendants.

Case No.:

26SMCV01266

Hearing Date: July 28, 2026

[TENTATIVE]

order RE:

dEFENDANT hersel ahdout's demurrer to

plaintiff's complaint and motion to strike portions of plaintiff's complaint

BACKGROUND

In or

about August of 2006, Plaintiff Helen Mirshokri and her family, including Plaintiffs Shannon and Tiffany Mirshokri ("Plaintiffs") entered into a residential lease for an apartment at 115 N. Clark Drive, in Beverly Hills, California 90211 (the "Apartment"). (Compl, ¶ 10.) According to the Complaint, on or about May of 2012, Defendant Hersel Ahdout ("Defendant") purchased the building that the Apartment was in and moved into the second unit of the building. (Id. at ¶ 14.) Over the next 13 or so years, Defendant failed to perform any form of maintenance, reconstruction, or take any serious action to remediate a wide range of hazardous, disturbing, and/or dangerous conditions with the Apartment. (Id. at ¶ 16.) Plaintiffs alleged issues such as mold, damaged locks, pipe bursts, flooding, refusing to change carpets, leaks, and the collapse of part of their ceiling. (Id. at ¶¶ 16-22.) Plaintiffs vacated the Apartment sometime between March 16 through March 27 and incurred a significant expense from moving out. (Id. at ¶¶ 31-33.) Plaintiff Shannon has also been suffering from persistent respiratory issues since approximately 2021. (Id. at ¶ 38.) Plaintiffs allege that Defendant constructively evicted them because Plaintiffs were paying \$4,675, which is below market value for the Apartment, and he wanted to re-rent the Apartment at a higher rent. (Id. at ¶¶ 51-52.) After Plaintiffs moved out, Defendant conducted the repairs to the Apartment and marketed the Apartment at \$7,500 on June 10, 2025. (Id. at ¶¶ 53-54.)

On March 4, 2026,

Plaintiffs filed a Complaint alleging (1) Breach of Contract; (2) Breach of the Covenant of Good Faith and Fair Dealing; (3) Breach of the Warranty of Habitability; (4) Negligence Per Se; (5) Breach of the Covenant of Quiet Enjoyment; (6) Constructive Eviction; (7) Private Nuisance; (8) Intentional Infliction of Emotional Distress; (9) Negligent Infliction of Emotional Distress; (10) Violation of Civil Code Section 1942.4; (11) Negligence; (12) Violation of Statutory Duties Imposed by BHRSO and BHMC 4-5-701; (13) Violation of Civil Code Section 1942.5; and (14) Violation of Unfair Competition Law – California Bus. & Prof. Code Section 17200 et seq.

On June 26, 2026,

Defendant filed a Demurrer and a Motion to Strike.

On July 15, 2026, Plaintiffs
filed oppositions to the Demurrer and the Motion to Strike.

On July 21, 2026,
Defendant filed a reply to the oppositions to the Demurrer and the Motion to
Strike.

DEMURRER

LEGAL
STANDARD

As
a general matter, in a demurrer proceeding, the defects must be apparent on the
face of the pleading or via proper judicial notice. (Donabedian v. Mercury
Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading
alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants,
Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes
the truth of the complaint’s properly pleaded or implied factual allegations.
(Ibid.) The only issue a demurrer is concerned with is whether the complaint,
as it stands, states a cause of action. (Hahn v. Mirda (2007) 147
Cal.App.4th 740, 747.)

“The party against whom a complaint or
cross-complaint has been filed may object, by demurrer or answer as provided in
section 430.30, to the pleading on any one or more of the following grounds...
(e) the pleading does not state facts sufficient to constitute a cause of
action. (f) The pleading is uncertain. As used in this subdivision, “uncertain”
includes ambiguous and unintelligible.” (Code Civ. Proc. [AW13.1]§
430.10.) “[D]emurrers for uncertainty are disfavored, and are granted only if
the pleading is so incomprehensible that a defendant cannot reasonably
respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38
Cal. App. 5th[AW14.1] 677, 695.)

Where
a demurrer is sustained, leave to amend must be allowed where there is a
reasonable possibility of successful amendment. (Goodman v. Kennedy
(1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court
that a pleading can be amended successfully. (Id. [AW15.1]; Lewis v.

YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

DISCUSSION

Defendant demurs to the first, second, fourth, seventh, eighth, ninth, tenth, twelfth, thirteenth, and fourteenth causes of action.

A. First

Cause of Action for Breach of Contract and Second Cause of Action for Breach of Good Faith and Fair Dealing

Defendant

argues that Plaintiffs do not attach the operative lease agreement to the Complaint, do not identify the material provisions of the alleged lease, and do not specify any contractual obligations. Instead, the Complaint merely alleges in a conclusory fashion that Defendant failed to comply with the lease and applicable law.

In

opposition, Plaintiffs concede that they did not attach the operative lease agreement to the Complaint. Plaintiffs argue that they have alleged the existence of a written residential lease agreement and alleged that Defendant has breached the agreement's terms by failing to make necessary repairs, maintain, or upkeep the Apartment. Plaintiffs contend that each and every residential lease in California has, if not an express warranty of habitability, then an unwaivable implied warranty of habitability. Plaintiff argue that the legal effects of the written lease agreement are unambiguously pled.

“To

establish a cause of action for breach of contract, the plaintiff must plead and prove (1) the existence of the contract, (2) the plaintiff's performance or excuse for nonperformance, (3) the defendant's breach, and (4) resulting damages to the plaintiff.” [Citation.]” (Maxwell v. Dolezal (2014) 231 Cal.App.4th 93, 97-98.) “If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated

by reference.” (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 229, 307.) “A written contract may be pleaded either by its terms – set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference – or by its legal effect. [Citations.]” (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.)

“There is an implied covenant of good faith and fair dealing in every contract that neither party will do anything which will injure the right of the other to receive the benefits of the agreement. [Citation.]” (Comunale v. Traders & Gen. Ins. Co. (1958) 50 Cal.2d 654, 658.) To allege a breach of the implied covenant of good faith and fair dealing, the plaintiff must allege, “‘something beyond breach of the contractual duty itself’ and it has been held that ‘[b]ad faith implies unfair dealing rather than mistaken judgment’” (Careau & Co. v. Sec. Pac. Bus. Credit, Inc. (1990) 222 Cal.App.3d 1371, 1394, internal citations omitted.)

The Court agrees with Defendant that Plaintiffs have insufficiently pled the existence of a written contract. The Complaint merely states: “Plaintiffs and Defendants entered into a written residential lease agreement.” (Compl., ¶ 58.) The Complaint does not attach the lease agreement and it does not state the terms of the contract verbatim. Because Plaintiffs failed to allege sufficient facts regarding the terms of the contract, the Court sustains the demurrer to the first and second causes of action with leave to amend.

B. Fourth

Cause of Action for Negligence Per Se

Defendant

argues that negligence per se is an evidentiary doctrine, not an independent cause of action. Additionally, Plaintiff has asserted a separate cause of action for negligence, so the negligence per se claim would be considered part of the negligence cause of action is not a standalone cause of action.

In

opposition, Plaintiffs contend that just because the causes of action could have been brought as a single cause of action does not mean that the pleadings

do not state facts sufficient to constitute a cause of action for negligence per se.

The

Court agrees with Defendant. “[T]he doctrine of negligence per se is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence.” (Goldstein v. Superior Ct. (2023) 93 Cal.App.5th 736, 741.) Also, because Plaintiffs have directly stated a cause of action for Negligence, the cause of action for Negligence Per Se is duplicative and should be treated as a single cause of action. (See Turner v. Seterus, Inc. (2018) 27 Cal.App.5th 516, 534 [noting that “the doctrine of negligence per se is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence” and treating plaintiffs’ causes of action for negligence per se and negligence as a single cause of action].) A demurrer may be sustained when a cause of action is duplicative of another cause of action. (Rodrigues v. Campbell Industries (1978) 87 Cal.App.3d 494, 501; see Palm Springs Villas II Homeowners Association, Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.)

Accordingly,

the demurrer to the fourth cause of action is sustained without leave to amend. Plaintiffs may allege the duty to maintain a safe and habitable rental property as part of the negligence cause of action.

C. Seventh

Cause of Action for Private Nuisance

Defendant

argues that Plaintiffs’ private nuisance claim is entirely duplicative of Plaintiffs’ negligence and habitability claims. Defendant contends that the nuisance claim is predicated upon the same alleged conduct supporting Plaintiffs’ negligence and habitability causes of action. Also, the nuisance claim does not seek any unique remedy, as Plaintiff merely seeks the same damages recoverable under Plaintiffs’ negligence and habitability claims.

In

opposition, Plaintiffs contend that the private nuisance claim is separate and is not based exclusively on the fact that Defendant was negligent. Regardless of Defendant’s negligence, Defendant created a private nuisance by way of leak of

water from his own apartment above Plaintiffs' apartment which caused a collapse of the ceiling of Plaintiffs' apartment. Moreover, the leak was injurious to health, offensive to the senses, and an obstruction of the free use of property.

"Anything

which is injurious to health, including, but not limited to, the illegal sale of controlled substances, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property, or unlawfully obstructs the free passage or use, in the customary manner, of any navigable lake, or river, bay, stream, canal, or basin, or any public park, square, street, or highway, is a nuisance." (Civ. Code, § 3479.) Every nuisance that is not a public nuisance is private. (Civ. Code, § 3481.)

The

Supreme Court has set out the elements of an action for private nuisance as follows. "First, the plaintiff must prove an interference with its use and enjoyment of its property. Second, the invasion of the plaintiff's interest in the use and enjoyment of the land must be substantial, i.e., it caused the plaintiff to suffer substantial actual damage. Third, the interference with the protected interest must not only be substantial, it must also be unreasonable, i.e., it must be of such a nature, duration, or amount as to constitute unreasonable interference with the use and enjoyment of the land." (Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority (2022) 83 Cal.App.5th 1137, 1176 [italics removed].)

Defendant

relies on El Escorial Owners' Assn. v. DLC Plastering, Inc. (2007) 154 Cal.App.4th 1337 to contend that the negligence and nuisance claims are duplicative and the demurrer to the nuisance claim should be sustained. There, the court found that the factual allegations incorporated into the nuisance cause of action involved negligence and defective workmanship. (El Escorial Owners' Assn. v. DLC Plastering, Inc. (2007) 154 Cal.App.4th 1337, 1349). Because the negligence and nuisance causes of action rely on the same facts about lack of due care, the nuisance claim is a negligence claim. (Ibid.) Thus, the nuisance claim was merely a clone of the negligence claim. (Ibid.) Moreover, the nuisance claim only contained conclusory allegations that were not sufficient to state a cause of action. (Id. at pp. 1348-1349.) The court found that the plaintiff failed to describe the nuisance nor show how it

differed from the first cause of action and only sought the same monetary damages for negligence, rather than injunction. (Id. at p. 1349.)

Similarly,

here, both the private nuisance and negligence causes of actions are stated on the same facts. The private nuisance cause of action states: "Defendants knew, or reasonably should have known, that Plaintiffs would be injured as a result of the conduct that constituted a nuisance, such as, but not limited to, failing to properly repair a leak that ultimately led the ceiling to collapse."

(Compl., ¶ 97.) The private nuisance

action only requests damages. (Id. at ¶ 100.) Because the private nuisance cause of action relies on the same facts as to lack of due care and seeks the same remedy as the negligence action, Plaintiffs have failed to state a separate, non-duplicative cause of action for private nuisance.

However, the Court finds that there is reasonable possibility of successful amendment if Plaintiffs are able separate the negligence and nuisance causes of action. El Escorial Owners' Assn. notes that courts have allowed plaintiffs to litigate nuisance causes of action in cases involving housing conditions. (El Escorial Owners' Assn., supra, 154 Cal.App.4th at p. 1348.) Accordingly, the Court will sustain the demurrer to the seventh cause of action with leave to amend.

D.

Eighth

Cause of Action for Intentional Infliction of Emotional Distress ("IIED")

Defendant argues that the conduct alleged is not so extreme and outrageous as to exceed all bounds tolerated in a civilized society. Plaintiffs' IIED cause of action merely includes conclusory statements alleging Defendant's conduct as outrageous.

In opposition, Plaintiffs argue that they have alleged paragraphs worth of specific allegations of Defendant's extraordinary disregard for maintaining or repairing the Apartment. Plaintiff alleges that after her husband died, Defendant knew he had more power over the widow and the two young women and abused his position by intimidating and ignoring Plaintiffs' needs. Defendant failed to repair the Apartment which was his obligation.

A cause of action for intentional infliction

of emotional distress exists when there is “ ‘ (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.” (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050.) A defendant's conduct is “outrageous” when it is so “extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Id. at pp. 1050–1051.) The defendant's conduct must be “intended to inflict injury or engaged in with the realization that injury will result.” (Id. at p. 1051.) Liability for intentional infliction of emotional distress “does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.” (Ibid.)

Behavior may be considered outrageous if a

defendant (1) abuses a relation or position that gives him power to damage the plaintiff's interests; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress. (Molko v. Holy Spirit Association (1988) 46 Cal.3d 1092, 1122, superseded by statute, internal citation omitted.) A tenant may state a cause of action for intentional infliction of emotional distress by alleging that she had suffered “ ‘extreme emotional distress’ as a result of the [landlord's and property manager's] ‘knowing, intentional, and willful’ failure to correct defective conditions of the premises.” (Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1057, 1069.)

The Court agrees that Plaintiffs have adequately

alleged outrageous conduct beyond negligent failure to repair. The Complaint alleges that Defendant abused his position of power over Plaintiffs as their landlord. (Compl., ¶ 18.) The Complaint specifically states that after the death of Plaintiff Helen's husband and the father of the other two Plaintiffs, Defendant “became even more strenuous as Ahdout appeared simply to not respect or have any care for a widow and her two daughters, and the Mirshokris no longer had Eli, as their head of the household, to stand up to Ahdout. Ahdout took advantage of the situation and did even less to maintain and repair the Apartment.” (Ibid.) The Complaint goes on to list 9 specific and detailed allegations of Defendant's knowing and intentional refusal to repair the apartment after the husband's death. (Id. at ¶ 19.) These allegations include that Defendant denied the existence of mold, that Defendant

refused to retain professional cleaners, and that Defendant refused to fix doors, leaks, and more. (Ibid.) These allegations that Defendant refused to fix issues to take advantage of the death of Plaintiff's husband sufficiently state allegations that Defendant knowingly engaged in outrageous conduct and in abuse of his power as Plaintiffs' landlord.

Additionally, Plaintiffs alleged severe emotional distress, illness, and mental stress. (Id. at ¶ 105.) Specifically, Plaintiffs also alleged that they were in fear of the ceiling collapsing, the spread of dangerous mold, other hazardous materials throughout the Apartment, and fear of worsening health. (Id. at ¶ 41.)

Accordingly, the Court overrules the demurrer to the eighth cause of action.

E.

Ninth

Cause of Action for Negligent Infliction of Emotional Distress ("NIED")

Defendant argues that the NIED claim is properly pleaded as a negligence cause of action, not a standalone cause of action. Plaintiffs have asserted both a cause of action for negligence and NIED based upon the same conduct.

In opposition, Plaintiff argues that just because multiple causes of action rely on the same facts does not mean that the NIED claim fails to state a claim.

A claim for NIED requires: (1) a legal duty to use due care, (2) breach of such legal duty, (3) damage or injury (serious emotional distress), and (4) cause of the resulting damage or injury. (Huggins v. Longs Drug Stores California, Inc. (1993) 6 Cal.4th 124, 129.) California courts have repeatedly recognized that NIED is not an independent tort, but the tort of negligence such that the traditional elements of duty, breach of duty, causation, and damages apply. (See, e.g., Spates v. Dameron Hospital Association (2003) 114 Cal.App.4th 208, 213; Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc. (1989) 48 Cal.3d 583, 588.) Thus to plead NIED, negligence must be established. There are two classifications for NIED claims: (1) bystander and (2) direct victim. (See Spates, supra, 114 Cal.App.4th at 213.) To make a direct victim claim, the emotional distress suffered by the plaintiff must be

a foreseeable consequence of the conduct directed at the plaintiff. (See *Molien v. Kaiser Foundation Hospital* (1980) 27 Cal.3d 916, 930.)

“[T]here

is no duty to avoid causing emotional distress to another, and that damages for emotional distress are recoverable only if the defendant has breached some other duty to the plaintiff.” (*Potter v. Firestone Tire & Rubber Co.*

(1993) 6 Cal.4th 965, 984.) “[U]nless the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant’s breach of some other legal duty and the emotional distress is proximately caused by that breach of duty.” (*Id.* at 985.) “Even then, with rare exceptions, a breach of the duty must threaten physical injury, not simply damage to property or financial interests.” (*Ibid.*)

Here,

Plaintiffs do not allege a separate duty or breach of that duty. The alleged duty and breach are the same as those alleged in the cause of action for negligence. Plaintiffs allege: “Defendants owed Plaintiffs a duty to exercise reasonable care in the ownership, operation, management, and control of the Apartment.” (Compl., ¶ 109.)

Plaintiffs also rely on the same facts that Defendant failed to remediate issues with the Apartment. (*Id.* at ¶ 110.) Thus, the claim for NIED is merely duplicative of the claim for negligence and fails to allege facts sufficient to state a separate cause of action for NIED.

Accordingly, the demurrer to the ninth cause of action is sustained with leave to amend.

F.

Tenth

Cause of Action for Violation of Civil Code Section 1942.4

Defendant argues that Plaintiffs do not

allege facts identifying the specific written notice allegedly issued by the enforcing agency or that the cited conditions remained unabated for the statutorily required thirty-five day period following service of the notice or that any delay in completing repairs was without good cause. Also, Defendant contends that Plaintiffs failed to allege the Defendant continued to collect rent only after expiration of the thirty-five day statutory period. Finally,

Plaintiffs failed to allege facts alleging the conditions were not caused by the tenant.

In opposition, Plaintiffs contend that they did allege these facts. Plaintiffs also argue that whether the notice was sufficient is a factual issue not to be determined at the demurrer stage.

"A landlord of a dwelling may not demand rent, collect rent, issue a notice of a rent increase, or issue a three-day notice to pay rent or quit pursuant to subdivision (2) of Section 1161 of the Code of Civil Procedure, if all of the following conditions exist prior to the landlord's demand or notice:

(1) The dwelling substantially lacks any of the affirmative standard characteristics listed in Section 1941.1 or violates Section 17920.10 of the Health and Safety Code, or is deemed and declared substandard as set forth in Section 17920.3 of the Health and Safety Code because conditions listed in that section exist to an extent that endangers the life, limb, health, property, safety, or welfare of the public or the occupants of the dwelling.

(2) A public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions.

(3) The conditions have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause. For purposes of this subdivision, service shall be complete at the time of deposit in the United States mail.

(4) The conditions were not caused by an act or omission of the tenant or lessee in violation of Section 1929 or 1941.2."

(Civ. Code, § 1942.4.)

The Court agrees with Defendant that the cause of action is inadequately pled. The Complaint states that, on or about March 12, 2025, Plaintiff "entered a claim" with the Beverly

Hills Senior Code Enforcement Officer who did an inspection and “placed the Defendants on notice.” (Compl., ¶ 117.) Plaintiffs fail to allege any facts that Defendant was notified by the Officer of his obligations in writing. Also, Plaintiffs conclude that the conditions continued to exist beyond the “time frame that they were required to be repaired” and Defendant continued to demand rent following the expiration without providing any facts. (Id. at ¶¶ 119-121.)

Accordingly, the Court sustains the demurrer to the tenth cause of action with leave to amend.

G.

Twelfth

Cause of Action for Violation of Statutory Duties Imposed by Beverly Hills Rent Stabilization Ordinance (“BHRSO”)

Defendant argues that Plaintiffs’ cause of action fails because the Complaint fails to allege facts demonstrating that Plaintiffs’ tenancy is subject to the BHRSO. Plaintiffs fail to allege the date the subject property was constructed, the amount of their initial move-in rent, or any facts establishing whether their tenancy falls within Chapter 5 or Chapter 6 of the BHRSO. Plaintiff also fails to identify the specific provisions of the Ordinance allegedly violated or facts demonstrating how Defendant’s conduct violated those provisions.

In opposition, Plaintiffs contend that Plaintiffs expressly allege that they are taking action under Chapter 6, that the building was constructed before 1995, and that Plaintiffs’ rent exceeded \$600. Plaintiffs also contend that they allege conduct by Defendant that violated the BHRSO.

According to the BHRSO, “[t]he provisions of this [sixth] chapter are applicable to all multiple residential dwellings consisting of two (2) or more units with the exception of those units that are subject to the existing rent stabilization provisions of chapter 5 of this title; those units excluded under subsections 4-5-102 A through E of this title; and units in a building that has a certificate of occupancy issued after February 1, 1995. (Beverly Hills Mun. Code, § 4-6-1.) “Except as provided in sections 4-6-4 and 4-6-5 of this chapter, the maximum rent which an apartment owner may charge for any dwelling unit regulated by this chapter is the monthly rental charged for such unit on April 30, 1986, plus any rental increases

permitted by section 4-6-3 of this chapter.” (Beverly Hills Mun. Code, § 4-6-2.)

Plaintiffs allege that the Apartment building was constructed in 1937, which is before February 1, 1995 as required by Chapter 6. (Compl., ¶ 13.) Plaintiffs allege that their rent was \$3,500 per month. (Id. at ¶ 15.) Plaintiffs allege the code section that the Apartment is subject to and covered by and lists Defendants violations. (Id. at ¶¶131-133.)

However, Plaintiffs do not allege a rent increase while they were living at the Apartment. Instead, Plaintiffs allege they moved out in March of 2025 and that, after they moved out, in June of 2025, Defendants raised rent from \$4,675 to \$7,500. (Id. at ¶¶ 49-56.)

Accordingly, the Court sustains the demurrer as to the twelfth cause of action with leave to amend.

H.

Thirteenth

Cause of Action for Violation of Civil Code Section 1942.5

Defendant argues that the Complaint fails to plead facts establishing that Defendant engaged in conduct prohibited by Civil Code section 1942.5 because Plaintiffs engaged in protected activities. Nor does the Complaint allege specific retaliatory facts, when those acts occurred, or facts demonstrating a casual nexus between Plaintiffs' protected activity and Defendant's alleged conduct.

In opposition, Plaintiffs contend that these facts have been alleged in the Complaint.

To state a claim under Civil Code section 1942.5, a plaintiff must allege facts demonstrating: (1) the plaintiff engaged in protected activity under the statute; (2) the landlord thereafter engaged in conduct prohibited by section 1942.5, such as increasing rent, decreasing services, bringing or threatening to bring an action for possession, or otherwise retaliating against the tenant; and (3) that the landlord's conduct was taken for the purpose of retaliating against the tenant because of the protected activity. (Civ. Code, § 1942.5, subs. (a)-(d).)

The Court finds that the cause of action is insufficiently pled and conclusory. The Complaint merely states that within 180 days of Plaintiffs' protected activity, Defendant retaliated by increasing rent and decreasing housing services and that Defendant's actions were substantially motivated by Plaintiffs' protected activity. (Compl., ¶¶ 140-141.) Plaintiffs have not provided any factual allegations to support the contentions that Defendant retaliated, when Defendant retaliated, how much rent was increased by and when, how housing services were decreased, or how Defendant's conduct was motivated by Plaintiffs' protected activity.

Accordingly, the demurrer to the thirteenth cause of action is sustained with leave to amend.

I.

Fourteenth

Cause of Action for Violation of Business & Professions Code Section 17200

Defendant argues that Plaintiffs fail to adequately allege the requisite injury in fact and loss of money or property. The Complaint does not allege facts demonstrating a cognizable economic injury resulting from a specific, unlawful, unfair, or fraudulent business practice. Also, the Complaint fails to adequately allege conduct by Defendant amounting to an unlawful, unfair, or fraudulent business practice. Plaintiffs do not identify with reasonable particularity the specific conduct constituting the unlawful, unfair, or fraudulent business practice.

In opposition, Plaintiffs contend that they allege that they were constructively evicted from their home and forced to move into a more expensive apartment as a result of Defendants' unfair business practices.

To set forth a claim for a violation of the UCL, Plaintiffs must establish Defendants were engaged in an "unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising" and certain specific acts. (Bus. & Prof. Code, §17200.) A cause of action for unfair competition "is not an all-purpose substitute for a tort or contract action." (Cortez v. Purolator Air Filtration Products Co. (2000) 23 Cal.4th 163, 173.) A UCL plaintiff must have suffered injury in fact and lost money or

property. (In re Tobacco II Cases (2009) 46 Cal.4th 298, 320; Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 322.)

The Complaint alleges that the business conduct was unlawful and lists which laws it violates. (Compl., ¶ 146.) The Complaint also alleges that the business conduct was unfair because Defendant intimidated and ignored Plaintiffs which was intended to coerce Plaintiffs into abandoning their long-term residence so Defendant could increase the rental profit. (Id. at ¶ 149.) The Complaint also alleges that Plaintiffs lost money and property as a result of Defendant's conduct including: "overpayment of rent due to diminished value of the leasehold; payment to obtain cleaning services for Apartment's structural failures; loss of personal property to water and other damage caused by Defendants; and other damages in an amount to be determined at trial, but which amount is within the jurisdictional requirements of this Court." (Id. at ¶ 151.) Because the Complaint sufficiently alleges unlawful and unfair business practices that resulted in the loss of money and property, the Court overrules the demurrer to the fourteenth cause of action.

MOTION
TO STRIKE

LEGAL
STANDARD

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

DISCUSSION

Defendant moves to strike punitive damages and attorney fees from the Complaint.

A. Punitive

Damages

Defendant

argues that Plaintiff has failed to allege specific facts demonstrating that Defendant acted with oppression, fraud, or malice and instead alleges, at most, that Defendant failed to adequately maintain the Apartment, failed to complete timely repairs, permitted various habitability defects to persist, and was unresponsive to Plaintiffs' complaints. Also, Plaintiffs' allegations as to Defendant's conduct as "willful, deliberate, malicious, despicable" are conclusory characterizations without underlying factual allegations.

In

opposition, Plaintiffs argue that the Complaint alleges specific conduct throughout the Complaint that raises to the level of malice and oppression.

Civil

Code section 3294 authorizes the recovery of punitive damages in non-contract cases where "the defendant has been guilty of oppression, fraud, or malice . . ." (Civ. Code § 3294(a).) "'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Id., § 3294(c)(1).) A plaintiff must establish the defendant was aware of the probable dangerous consequences of his conduct and that he willfully and deliberately failed to avoid those consequences to support an award of punitive damages based on conscious disregard of the safety of others. (Penner v. Falk (1984) 153 Cal.App.3d 858, 867.) "'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(2).) "'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Id., § 3294(c)(3).)

"In order to

survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) Punitive damages thus

require more than the mere commission of a tort. (See *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 894-95.) Specific facts must be pleaded in support of punitive damages. (See *Hillard v. A.H. Robins Co.* (1983) 148 Cal.App.3d 374, 391-92.) Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 (citations omitted).) Conclusory characterizations of defendant's conduct as willful, intentional or fraudulent is a patently insufficient statement of the necessary factual grounds for punitive damages. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.)

Here, the Complaint

alleges Defendant willfully and consciously disregarded the safety of Plaintiffs and that Defendant subjected Plaintiffs to cruel and unjust hardship in conscious disregard of that person's rights. As discussed above in the Demurrer, the Complaint alleges the Defendant appeared to not respect or have any care for Plaintiffs after the death of Plaintiff Helen's husband; that Defendant took advantage of the situation and did less to maintain and repair the Apartment; and that Defendant knew and intentionally refused to repair the apartment after the husband's death, including denying existence of mold, refusing to retain professional cleaners, and refusing to fix doors, leaks, and more. (Compl., ¶¶ 18-19.) These allegations that Defendant refused to fix issues to take advantage of the death of Plaintiff's husband sufficiently state allegations that Defendant consciously subjected Plaintiffs to cruel and unjust hardship in conscious disregard of Plaintiffs' right to live in a hospitable Apartment. Moreover, by alleging that Plaintiffs requested Defendant fix multiple hazardous or unsafe conditions throughout the Apartment and Defendant knowingly refused to fix those issues or insisted the problems did not actual exist, Plaintiffs demonstrated that Defendant consciously disregarded the safety of Plaintiffs.

Accordingly, the Motion to Strike punitive damages is denied.

B. Attorney
Fees

Defendant

moves to strike references to attorney's fees in paragraph 113, paragraph 144, paragraph 150, Prayer for Relief No. 2, and Prayer for Relief No. 3. The Court has

sustained the demurrer as to the causes of action in which paragraph 113 and 144 are located, which are the ninth and thirteenth causes of action. Thus, the motion to strike as to attorney's fees for these causes of action is moot. The only other references to attorney's fees that Defendant moves to strike are for cause of action under the cause of action for violation of the UCL and the Prayer for Relief.

Defendant

argues that attorney fees should be stricken from the Prayer for Relief because the Complaint does not attach the lease or explain the substance of any attorneys' fees provision contained within the lease. The Court agrees with Defendant. Because Plaintiffs have not properly alleged the existence of a contract or any attorneys' fees provision throughout the Complaint, there is no alleged contract for Plaintiffs to seek attorneys' fees from. As such, the request for attorney fees in the Prayer for Relief, section 3, that states Plaintiffs are entitled to attorneys' fees "as provided by contract" is stricken with leave to amend.

The

only question that remains is whether Plaintiff is entitled to attorneys' fees from the alleged violation of the UCL. The cause of action for violations of the UCL states: "Defendants' actions and omissions affect public interest. Pursuant to Code of Civil Procedure Section 1021.5, Plaintiffs are entitled to reasonable attorneys' fees." (Compl., ¶ 150.) Defendant argues that Civil Code of Procedure section 1021.5 does not create an independent substantive basis for recovery of attorneys' fees. In opposition, Plaintiffs contend they may be awarded attorneys' fees under Civil Code of Procedure section 1021.5.

The

Court agrees with Plaintiffs. Code of Civil Procedure section 1021.5 states: "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided." (Code Civ. Proc., § 1021.) While the UCL does not provide for attorneys fees, if a plaintiff prevails in an UCL claim, the plaintiff may seek attorney fees as a private attorney general pursuant to Code of Civil Procedure section 1021.5. (Davis v. Ford Motor Credit Co. LLC (2009) 179 Cal.App.4th 581, 600.) There is no provision for such a right for a successful defendant." (Ibid.) Thus, it is not improper for Plaintiffs to bring a claim for attorneys fees for the UCL claim. Accordingly, the motion to strike attorneys' fees from the UCL claim,

paragraph 150, and the Prayer for Relief, section 2, is denied.

CONCLUSION

For the foregoing reasons, the Court SUSTAINS Defendant's Demurrer with 30 days leave to amend to the first, second, seventh, ninth, tenth, twelfth, and thirteenth causes of action and SUSTAINS the Demurrer without leave to amend to the fourth cause of action. The Court OVERRULES the Demurrer to the eighth and fourteenth causes of action.

The Court DENIES the Motion to Strike punitive damages.

The Court GRANTS the Motion to Strike attorneys' fees from section 3 of the Prayer for Relief with 30 days leave to amend. The Court DENIES the Motion to Strike attorneys' fees from paragraph 113 and 144 as moot. The Court DENIES the Motion to Strike attorneys' fees from paragraph 50 and Prayer for Relief, section 2.

DATED: July 28, 2026 _____

Edward
B. Moreton, Jr.

Judge
of the Superior Court